

The Merchant Shipping (Seafarer's Bio-metric Identity Document) Rules, 2016

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[Rule THE-MERCHANT-SHIPPING-SEAFARER-S-BIO-METRIC-IDENTITY-DOCUMENT-RULES-2016 of 2016](#)

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[The Merchant Shipping \(Seafarer's Bio-metric Identity Document\) Rules, 2016](#)

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[Ministry of Shipping](#)

G.S.R. 415(E). - In exercise of the powers conferred by sub-section (2) of section 99A and section 457 of the Merchant Shipping Act, 1958 and in accordance with the Seafarers' Identity Documents Convention (Revised), 2003 (No. 185) regulating the method of issuance of the Seafarers' Bio-metric Identity Document, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Merchant Shipping (Seafarer's Bio-metric Identity Document) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.

- These rules shall apply to Indian citizens, who fulfil the eligibility conditions specified under rule 5.

3.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"competent authority" means the Director General of Shipping;

(c)

"Convention" means International Labour Organisation document No. 185 on Seafarer's Identity Documents Convention (Revised), 2003;

(d)

"Form" means the form appended to these rules;

(e)

"issuing authority" means Shipping Master or such other officers as may be nominated by the competent authority;

(f)

"SID" means a Seafarer's Identity Document issued under these rules.

(2)

Words and expressions defined in the Act and used but not defined in these rules shall have the same meanings assigned to them respectively in the Act.

4.

Application for issuance for SID.

(1)

A citizen of India, who fulfils the eligibility conditions specified in rule 5 for the issuance of SID, shall apply in the Form-1 appended to these rules to the issuing authority.

(2)

Application for issuance of SID shall be made online in the given SID e-module to the issuing authority of his choice and applicant shall select available dates and data collection center of his choice.

(3)

The payment of application fee shall be made online through the e-payment gateway and the applicant shall submit his application online.

(4)

The applicant will appear on the appointed date and time at the data collection centre, along with his Continuous Discharge Certificate (CDC) and Passport in original.

(5)

The verification officer in the office of the issuing authority shall verify the application with the CDC records available in the office of issuing authority well in advance of the appointment date of the applicant.

(6)

The verification officer shall also verify the particulars received from other issuing authority with CDC records available in the former's office and communicate to the latter well in advance of the assigned date of the applicant.

(7)

After collection of the biometric data, the SID document shall be printed and issued by the issuing authority and it shall

be delivered to the applicant either by hand or through post.

(8)

The competent authority may specify any modification in the manner of submission of application and accompanying documents corresponding to the e-module for the SID.

5.

Eligibility for Seafarer Identity Document.

- An Indian national who is in possession of a valid Indian Continuous Discharge Certificate is eligible to apply for SID.

6.

Fee.

(1)

The fee for obtaining the SID or its renewal shall be three hundred rupees, which shall be non-refundable, payable to the issuing authority.

(2)

The payment of fee may be revised by the competent authority, which shall not exceed one thousand and five hundred rupees.

(3)

The payment of fee shall be made by demand draft drawn on a scheduled bank or e-payment as may be specified by the Director-General.

7.

Period of validity.

- The maximum validity of a seafarers' identity document shall be for a period of ten years, subject to renewal after the first five years.

8.

Renewal.

(1)

SID may be renewed after first five years of its issuance on a request from the holder for a further period up to ten years at a time, if the holder's SID has not been cancelled or withdrawn or suspended under these rules.

(2)

An SID holder, who fulfils the eligibility conditions specified in sub-rule (1) for the issue of an SID, may apply in the Form-2 appended to these rules to the issuing authority.

(3)

Application for issuance of SID shall be made online in the given SID e-module to the issuing authority of his choice, Applicant shall select available dates and data collection centre of his choice. The payment of application fee shall be made online through the e-payment gateway. The applicant shall submit his application online. The applicant will appear on the appointed date and time at the data collection centre, along with his Continuous Discharge Certificate (CDC) and passport in original.

(4)

The verification officer in the office of the issuing authority shall verify the application with the SID records available in the office of issuing authority well in advance of the assigned date of the applicant. The verification officer shall also verify the particulars received from other issuing authority with the SID records available in the former's office and communicate to the latter well in advance of the assigned date of the applicant. After collection of the biometric data, the SID document shall be printed and issued by the issuing authority. It shall be delivered to the applicant either by hand or through post.

9.

Cancellation or suspension of an SID.

- SID issued to any person whose Continuous Discharge Certificate or Certificate of Competency is suspended or cancelled shall also be suspended for the same period or cancelled as that of Continuous Discharge Certificate or Certificate of Competency.

10.

Issuance of duplicate SID.

(1)

Where SID of a person issued under these rules, is defaced, destroyed, lost, mutilated or torn, such seafarer may apply to the issuing authority for the issuance of duplicate SID.

(2)

An application for the issue of a duplicate SID shall be made in the Form-2 appended to these rules.

(3)

In case where SID is lost, the applicant will require registering a First Information Report (FIR) in the police station and furnishing those details in the application for duplicate SID.

(4)

The manner of submission of application for duplicate Seafarer Bio-metric Identity Document (SID) and its issuance shall be as prescribed under sub-rules (3) and (4) of rule 8.

Form-1

[see rule 4 (1)]

Application Form for Seafarers Identity Document (SID)

1. Application No. : (online system generated No.)

2. Fee details :

3. Indian National Data Base of Seafarer (INDOS) No. :

Date of issue :

4. Continuous Discharge Certificate (CDC) No. :

Date of issue:

Date of expiry:

Issuing authority:

5. Name :

6. Father's name :

7. Sex :

8. Date of birth :

9. Place of birth :

10. Nationality :

11.

E-mail address :

12.

Mobile No.

13.

Height :

14.

Identification mark (if any) :

15.

Address:

Street :

Village/Post/Tehsil :

District :

Pin code :

Phone No. :

Nearest Police Station :

16.

Have you ever applied for SID before :

17.

Have you ever been at any time debarred for obtaining

(a)

CDC :

(b)

SID :

Signature :

Date :

Declaration

1. I hereby declare that all the statements made in this application are true and complete to the best of my knowledge and belief and nothing has been concealed or distorted.
2. I also affirm and declare that I have not previously been issued with Seafarers Identity Document (SID) and I have not submitted an application for SID to any other issuing authority in India.
3. I am aware that if any time I am found to have concealed or distorted any material information and the issuing authority has reason to believe that I have obtained the SID by presenting false or erroneous information, my SID will be cancelled or suspended forthwith as per the provisions contained in the Merchant Shipping (Biometric Seafarers Identity Document) Rules, 2016 as amended.

Place :

Signature of the applicant

Date :

Name

of the applicant

Form-2

[see rule 8 (2) and rule 10 (2)]

Application Form for issue of renewal or duplicate Seafarers Identity Document (SID)

1. Application No. : (online system generated No.)

2. Application for:

(a)

Renewal of SID:

(b)

Duplicate SID:

3. Fee details :

4. Indian National Data Base Of Seafarer (INDOS) No. :

Date of issue :

5. SID No. :

Date of issue:

Date of expiry:

Issuing authority:

6. Name :

7. Have you ever been at any time debarred for obtaining-

(a)

CDC:

(b)

SID:

8. Has your SID been cancelled or withdrawn or suspended under these rules :

9. Whether your SID is :

(a)

defaced:

(b)

destroyed:

(c)

lost:

(d)

mutilated:

(e)

torn:

10. In case of SID lost:

(a)

FIR No. :

(b)

Date :

(c)

Police Station:

Signature :

Date :

Declaration

1. I hereby declare that all the statements made in this application are true and complete to the best of my knowledge and belief and nothing has been concealed or distorted.

2. I also affirm and declare that I have not submitted an application for SID to any other issuing authority in India.

3. I am aware that if any time I am found to have concealed or distorted any material information and the issuing authority has reason to believe that I have obtained the SID by presenting false or erroneous information, my SID will be cancelled or suspended forthwith as per the provisions contained in the Merchant Shipping (Biometric Seafarers Identity Document) Rules, 2016 as amended.

Place :

Signature of the applicant

Date :

Name

of the applicant

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